

State of Maharashtra v. Union of India & Ors. (BNSS Harmonization)

Citation: 2026 SCC OnLine SC 45 | Court: Supreme Court | Year: 2026

Coram: 5-Judge Constitution Bench | Subject: Criminal Law & BNSS | Provisions: BNSS 2023 Sec 173(3) & Sec 35

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Section 173(3) of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023, permitting preliminary inquiry before FIR registration for offences punishable between 3 to 7 years, is constitutionally valid and does not violate Lalita Kumari. The inquiry must strictly conclude within 14 days, and arrest during such inquiry is strictly prohibited.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding BNSS 2023 Sec 173(3) & Sec 35. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to BNSS 2023 Sec 173(3) & Sec 35.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Section 173(3) BNSS provides a salutary procedural check against frivolous commercial and matrimonial litigation. The 14-day outer time ceiling is mandatory and non-extendable; failure to register an FIR upon prima facie disclosure of a cognizable offence attracts disciplinary action against the station house officer.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Harmonized Section 173(3) BNSS with the mandatory FIR mandate in Lalita Kumari.
- â€¢ Strictly prohibited custodial detention or coercive steps during preliminary inquiry.
- â€¢ Mandated electronic record-keeping in police stations for every receipt of information.